AI Data Center Employment Forms

Every form a data center hire actually touches - what it is, who fills it in, what it costs, and the order to do it in. Built for two readers at once: a U.S. employer hiring into a facility, and an F-1 student taking a job in the United States.

Hiring paperwork fails in predictable ways. People download an old edition of a form, pay the wrong fee, or - in the F-1 case - start work a day before the authorization that allows it exists. This guide prevents those three mistakes. It separates the paperwork into three tracks, because mixing them up is where most delays come from.

The three tracks

- **Every U.S. hire:** Form I-9, Form W-4, and - if you do not yet have a Social Security number - Form SS-5. These apply no matter what the job is.
- **F-1 student hires:** A Designated School Official (DSO) recommendation on Form I-20, Form I-983 for STEM Optional Practical Training (OPT), and Form I-765 to U.S. Citizenship and Immigration Services (USCIS) for an Employment Authorization Document (EAD).
- **Data center employer records:** Safety, training, and compliance records the operator keeps on file - no government filing fee, but auditable.

$470 / $520

Form I-765 filing fee - online / paper. USCIS fee schedule, April 1, 2024. The only fee in the core hiring set.

$0

Forms I-9, W-4, SS-5, I-20 CPT/OPT recommendation, and I-983 - no government filing fee.

3 days

Business days an employer has to complete Section 2 of Form I-9 after a hire's first day of work.

> **Read this first:** Fees and form editions change. Every fee in this document is labeled with its schedule date, and page 6 links the official agency page for each form. Confirm the I-765 amount in the USCIS Fee Calculator on the day you file - USCIS fees are non-refundable, even when an application is denied for a missing document.

This is general information, not legal or immigration advice. For a filing that affects immigration status, work with your school's DSO and, for complex cases, an immigration attorney.

FEES AT A GLANCE

One form carries a fee. The rest are free.

For a standard data center hire, the government paperwork itself costs nothing. The single exception is Form I-765, the application an F-1 student files with USCIS for an EAD. Under the USCIS fee schedule effective April 1, 2024, that fee is **$470 filed online** or **$520 filed on paper**.

Form	Purpose	Fee	Who acts
I-765	Application for Employment Authorization (EAD) - OPT, STEM OPT, severe economic hardship	**$470 online $520 paper**	F-1 student files with USCIS, after DSO recommendation
I-9	Employment Eligibility Verification - proves identity and authorization to work in the U.S.	**$0**	Employee completes Section 1; employer completes Section 2
W-4	Employee's Withholding Certificate - tells payroll how much federal income tax to withhold	**$0**	Employee gives it to the employer - it is not sent to the IRS
SS-5	Application for a Social Security Card - original, replacement, or corrected card	**$0**	Worker applies to the Social Security Administration (SSA)
I-20	Certificate of Eligibility for F-1 status - carries the DSO's CPT or OPT recommendation	**$0**	School DSO issues it in SEVIS; student signs it
I-983	Training Plan for STEM OPT Students - employer and student training commitments	**$0**	Student and employer complete it; it goes to the DSO, not USCIS

Fee basis: USCIS fee schedule effective April 1, 2024. Some I-765 categories pay a reduced fee or none - the fee depends on the eligibility category on the form, which is why the check on page 6 matters.

Costs that are not form fees

- **Premium help:** Attorneys and filing services are private costs, separate from any government fee above. SSA warns against third parties charging to file Form SS-5 - the application itself is always free.
- **Employer systems:** E-Verify enrollment, payroll software, and background checks are operating costs, not form fees.
- **Re-filing:** A denied I-765 does not refund the fee - which is why the DSO review step on page 4 comes before payment.

> **F-1 warning:** An approval notice is not the same as permission to start. For OPT and STEM OPT, the physical EAD card must be in hand before the first day of off-campus work. Starting early - even unpaid, even for training - can violate F-1 status.

TRACK 1 • EVERY U.S. HIRE

The three forms every hire completes

Form I-9 - Employment Eligibility Verification (USCIS) • $0

Every employer in the United States must verify that each person hired is authorized to work here, whatever their citizenship. The employee completes and signs Section 1 no later than the first day of employment - and not before accepting a job offer. The employer then examines the employee's original, unexpired documents and completes Section 2 within three business days of that first day.

- Present either one List A document (shows both identity and work authorization - for example, a U.S. passport or an EAD) or one List B document plus one List C document.
- The employee chooses which acceptable documents to present. The employer cannot specify which ones, and cannot ask for extra documents - doing so can be unlawful discrimination.
- The employer keeps the completed I-9 on file; it is not mailed to USCIS. Download a fresh copy for each hire so you always use the current edition.

Form W-4 - Employee's Withholding Certificate (IRS) • $0

The W-4 tells the employer how much federal income tax to withhold from each paycheck. Complete Step 1 (personal information and filing status) and Step 5 (sign and date) in every case. Complete Steps 2 to 4 only when they apply - for example, multiple jobs, a working spouse, dependents, other income, or deductions beyond the standard deduction. The IRS Tax Withholding Estimator gives the most accurate result for complicated situations. Give the signed form to your employer, not the IRS, and file a new one when a life change alters your withholding. A separate state withholding form may also be required; states with no income tax, such as Texas, require none.

Form SS-5 - Application for a Social Security Card (SSA) • $0

You need a Social Security number to be paid as an employee and for wages to be credited to your record. Form SS-5 is the application for an original, replacement, or corrected card. Bring or mail it with original documents - or copies certified by the issuing agency - proving identity, age, and citizenship or work-authorized immigration status. Photocopies and notarized copies are not accepted. For an F-1 student, that packet normally includes the passport, Form I-20, Form I-94 arrival record, and proof of employment or employment eligibility such as an EAD or an on-campus job offer. The card is mailed after SSA verifies the documents; applying is always free.

> **Order in practice:** Offer accepted → W-4 and I-9 Section 1 on or before day one → I-9 Section 2 within three business days → SS-5 filed as soon as the worker is eligible, if a number is still needed. Payroll cannot finish setup correctly until all three are moving.

TRACK 2 • F-1 STUDENT EMPLOYMENT

Authorization comes before the first shift

An F-1 student can work in the United States, but only inside four authorized routes: on-campus employment, Curricular Practical Training (CPT), Optional Practical Training (OPT), and the STEM OPT extension - plus a narrow severe-economic-hardship route. Each route has its own form, and none of them is retroactive.

Form I-20 with a DSO recommendation • $0

The I-20 is issued by the school, not by USCIS. For CPT, the DSO authorizes the training in SEVIS and prints the employer, location, and dates on the I-20 - no USCIS filing and no EAD are needed, and the authorization must exist before work starts. For OPT, the DSO first recommends OPT on a new I-20; only then does the student file with USCIS. Filing an I-765 without that recommendation is a common, expensive denial.

Form I-765 - Application for Employment Authorization • $470 online / $520 paper

1. Get the OPT-recommended I-20 from your DSO and sign it.
2. Create a USCIS online account and start Form I-765. Use the right eligibility category: (c)(3)(B) for post-completion OPT, (c)(3)(C) for the STEM OPT extension, (c)(3)(A) for pre-completion OPT.
3. Upload the recommended I-20, Form I-94 record, passport and visa pages, any prior EAD (front and back), and a passport-style photo taken within 30 days. For STEM OPT, also upload evidence of the STEM degree.
4. Pay the fee shown for your category - confirm it in the USCIS Fee Calculator first - and submit. You may file up to 90 days before your program end date for post-completion OPT.
5. Wait for the EAD card (Form I-766) to arrive. Do not start work, paid or unpaid, before the card is in hand and its start date has arrived.

Form I-983 - STEM OPT Training Plan • $0

The 24-month STEM OPT extension requires a qualifying STEM degree and an employer enrolled in E-Verify. The student and employer complete Form I-983 together - training goals, supervision, and how progress will be evaluated - and give it to the DSO before the STEM recommendation is entered in SEVIS. The I-983 is not sent to USCIS with the I-765 unless USCIS asks for it. Report changes to the plan, your address, or your employer to the DSO within 10 days, confirm your information every six months, and complete the evaluations the plan requires.

> **Two limits that end eligibility:** On-campus employment is capped at 20 hours per week while school is in session. And 12 months or more of full-time CPT at one education level makes a student ineligible for OPT at that same level - track full-time CPT days before accepting a second long co-op or internship.

WHICH FORM DO I NEED?

Answer three questions

Your situation	Forms you need
Starting any new U.S. job, any citizenship	**I-9** (Section 1 by day one) + **W-4** before the first paycheck
No Social Security number yet, or card lost / name changed	**SS-5** to SSA with original identity and status documents
F-1 student, job on campus	I-9 + W-4 + SS-5. No I-765. Max 20 hours per week in session; DSO letter and job offer support the SS-5
F-1 student, off-campus job that is part of the degree (internship / co-op)	**CPT:** DSO authorization on a new **I-20** before starting. No USCIS fee
F-1 student, job in your field before or after graduation	**OPT:** DSO recommendation on **I-20**, then **I-765** to USCIS ($470 / $520); wait for the EAD
STEM graduate extending OPT by 24 months	**I-983** with an E-Verify employer → DSO → **I-765** (c)(3)(C) filed before current EAD expires
F-1 student facing severe economic hardship	DSO recommendation, then **I-765** to USCIS; authorization is case-by-case and never assumed
Employer hiring for the first time	I-9 for every hire, W-4 on file for payroll, W-2 wage statements issued to employees each January; an Employer Identification Number (Form SS-4, IRS) before the first payroll run

TRACK 3 • DATA CENTER EMPLOYER RECORDS

Records the operator keeps - no filing fee

Beyond hiring forms, a data center employer maintains records that regulators and customers can ask to see. These are kept on file rather than filed, and none carries a government form fee.

- **Safety records:** OSHA injury and illness logs, incident reports, and lockout/tagout and electrical-safety (NFPA 70E) training records for technicians who work on live power systems.
- **Training and access records:** Role-based training sign-offs, contractor and visitor access logs, and background-check authorizations held by the employer.
- **Environmental and equipment records:** Generator run logs, fuel and refrigerant records, and maintenance logs that support uptime and compliance audits.
- **Payroll records:** Completed I-9s and W-4s retained per the retention rules on the forms themselves, plus time and pay records the Fair Labor Standards Act requires employers to keep.

Worker rights, minimum wage, and overtime rules behind those payroll records are published by the U.S. Department of Labor Wage and Hour Division - linked on page 6.

CHECKLISTS & OFFICIAL LINKS

Download, check the fee, then file

Before you file - five checks

1. **Current edition:** Download the form fresh from the official page below - USCIS rejects outdated editions of some forms with no grace period.
2. **Fee check:** Confirm your exact I-765 category fee in the USCIS Fee Calculator. Fees are non-refundable.
3. **DSO first (F-1):** Never file an I-765 for CPT or OPT before the DSO recommendation exists on your I-20.
4. **Originals for I-9 and SS-5:** Photocopies are not accepted for either process.
5. **Keep copies:** Save everything filed, plus the payment confirmation and receipt notice.

Mistakes that cause denials and delays

- Starting off-campus work before the EAD arrives or before CPT appears on the I-20.
- Paying the paper fee on an online filing, or an old fee after a schedule change.
- An employer demanding a specific I-9 document, or asking for documents before a job offer is accepted.
- Missing the STEM OPT window - the I-765 must reach USCIS before the current EAD expires.
- Paying a third party to file Form SS-5. The SSA application is free, always.

Form I-9 and I-9 Central - USCIS
https://www.uscis.gov/i-9 • https://www.uscis.gov/i-9-central

Form I-765 - Application for Employment Authorization - USCIS
https://www.uscis.gov/i-765

USCIS Fee Calculator and filing fees - confirm before you pay
https://www.uscis.gov/feecalculator • https://www.uscis.gov/forms/filing-fees

Form I-983 and STEM OPT Hub - DHS Study in the States
https://studyinthestates.dhs.gov/formi-983-overview • https://studyinthestates.dhs.gov/stem-opt-hub

Form W-4 (PDF) - Internal Revenue Service
https://www.irs.gov/pub/irs-pdf/fw4.pdf

Form SS-5 (PDF) and Social Security number guidance - SSA
https://www.ssa.gov/forms/ss-5.pdf • https://www.ssa.gov/ssnumber/

Worker rights, wage and overtime rules - U.S. Department of Labor
https://www.dol.gov/agencies/whd/workers

Sources: USCIS Forms I-9 and I-765 and April 1, 2024 fee schedule; DHS Study in the States (I-983, STEM OPT Hub); IRS Form W-4; SSA Form SS-5; U.S. Department of Labor, Wage and Hour Division. Confirm current fees at the Fee Calculator above before filing. General information only - not legal, tax, or immigration advice.